

Karan Juneja v. State of U.P. and 6 Others

Allahabad High Court · Division Bench · 10 August 2016 · Writ - C No. 37153 of 2016 · **Recovery citation stayed against petitioner; recovery from R-7 left open; writ remains pending**

HEADNOTE

Where a writ against a recovery citation is connected with Writ-C No. 8370 of 2016, in which Clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 is under challenge, the Court issues notice to the Advocate General and respondent no. 7, lists the matter for admission, and directs that the recovery citation shall not be enforced against the petitioner, while the respondents remain free to recover the dues from respondent no. 7. The vires of Clause 4.3(f)(v) and the petitioner's liability are not decided. Later order-sheets through 24.2.2023 are time for counters, illness-slip pass-overs, and a relisting; they add no construction.

FACTUAL SUMMARY

Karan Juneja filed Writ-C No. 37153 of 2016 in the Allahabad High Court against the State of Uttar Pradesh and six others, challenging a recovery citation of electricity dues. On 10 August 2016 Tarun Agarwala and Vipin Sinha, JJ. connected the petition with Writ-C No. 8370 of 2016, in which Clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 had been challenged, issued notice to the Advocate General and to respondent no. 7, and listed the matter for admission on 5 September 2016. They directed that the recovery citation shall not be enforced against the petitioner, while leaving the respondents free to recover the dues from respondent no. 7.

Later 2016 sittings granted time for counters by respondent no. 4, respondents 5 and 6, and the Regulatory Commission, recorded service on respondent no. 7 and the Advocate General, took a rejoinder in the connected matter on record, and passed the case over on illness slips. The last order on the source, dated 24 February 2023, only directed relisting showing Sri Baleshwar Chaturvedi as counsel for the respondent. The extract does not identify the connection, the amount of the citation, or the relationship between the petitioner and respondent no. 7.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(v)

Interim stay of a recovery citation pending a connected challenge to Clause 4.3(f)(v); recovery from another respondent left open

QUESTION

Pending a connected writ challenging Clause 4.3(f)(v), may a recovery citation against the petitioner be stayed while recovery of the same dues from another respondent remains open?

HOLDING

Not decided on merits. The Court connected the writ with Writ-C No. 8370 of 2016, in which Clause 4.3(f)(v) of the Electricity Supply Code, 2005 had been challenged, issued notice to the Advocate General and respondent no. 7, listed the matter for admission, and directed that the recovery citation shall not be enforced against the petitioner, while it remained open to the respondents to recover the dues from respondent no. 7. Clause 4.3(f)(v) was not construed. ¶ 1

QUALIFIER

Interlocutory (10.8.2016, Tarun Agarwala, J. and Vipin Sinha, J.). Writ remains pending.

FLAG Unnumbered order-sheet of eight listings treated as paras 1–8: 10.8.2016 (connect; notice to AG and R-7; stay of citation against petitioner; recovery from R-7 left open), 5.9.2016, 16.9.2016 (R-7 and AG served), 3.10.2016, 18.10.2016, 15.11.2016 (Regulatory Commission counter; connected-matter rejoinder taken on record), 7.12.2016, 24.2.2023 (relist showing Baleshwar Chaturvedi). 'The said writ petition' in para 1 is the connected Writ-C No. 8370 of 2016. Catalog hits on other 4.3(f) sub-clauses (auction purchaser, landlord, first charge, IBC override, new-connection bar) are false positives — only Clause 4.3(f)(v) is mentioned.

interim-protection-pending-vires-challenge-to-supply-code-amendment

Pending a connected challenge to Clause 4.3(f)(v), notice issued to the Advocate General and respondent no. 7; the recovery citation shall not be enforced against the petitioner, while recovery of the same dues from respondent no. 7 remains open. ¶ 1

procedural-listing-no-construction

After the 10.8.2016 stay, the source comprises counter-time, illness-slip, and relisting orders through 24.2.2023; Clause 4.3(f)(v) and the petitioner's liability remain unadjudicated. ¶ 2-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF CLAUSE 4.3(F)(V) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Challenge pending in connected Writ-C No. 8370 of 2016; notice issued to the Advocate General; no merits ruling. ¶ 1

NOT DECIDED — PETITIONER'S LIABILITY FOR THE ELECTRICITY DUES SOUGHT TO BE RECOVERED

Only an interim stay of the recovery citation against the petitioner; recovery from respondent no. 7 left open. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.